

Suhel Ahmad v. State of U.P. and 4 Others

High Court of Judicature at Allahabad · Division Bench · 15.03.2023 · WRIT - C No. - 7298 of 2023 · **Clause 6.5 representation to be decided; coercive recovery stayed.**

HEADNOTE

Writ against a recovery citation for electricity dues of Rs.3,74,409 disposed of by directing respondent no.3 to treat the petitioner's representation dated 03.01.2023 as filed under clause 6.5 of the U.P. Electricity Supply Code, 2005 and decide it by a speaking order within three weeks. Coercive action stayed until that decision. The legality of the demand was not decided.

FACTUAL SUMMARY

Suhel Ahmad filed a writ against the Electricity Department challenging a recovery citation dated 25 June 2021 for electricity dues of Rs.3,74,409. He had already submitted a representation dated 3 January 2023 disputing the demand as illegal. The Department, he said, was pressing recovery without deciding that representation. On 2 March 2023 the High Court adjourned the matter for a week so the Department could obtain instructions. On the next date, counsel for the Department stated that respondent no.3 would decide the representation before proceeding further.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

pending representation against recovery citation

HOLDING

The writ is disposed of with a direction to respondent no.3 to treat the representation dated 03.01.2023 as filed under clause 6.5 of the U.P. Electricity Supply Code, 2005 and to decide it by a speaking order within three weeks of receipt of a true attested copy of the order and a photocopy of the representation. Until that decision, no coercive action shall be taken. ¶ 3-5

PRINCIPLE TAGS

clause-6.5-pending-representation-to-be-decided The undecided representation dated 03.01.2023 disputing the recovery citation was directed to be treated as a clause 6.5 objection and decided by a speaking order within three weeks. ¶ 4

para-6.5-objection-before-coercive-recovery Coercive recovery of the electricity dues was stayed until respondent no.3 decided the clause 6.5 representation. ¶ 5

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE RECOVERY CITATION DATED 25.06.2021 FOR RS.3,74,409 IS LEGAL

Left to respondent no.3 on the representation dated 03.01.2023; the Court did not rule on the demand. ¶ 4-5